

Deposition

[*Folio 1*]

Examinatio capta xv die mensis Junii anno regni domini nostri Jacobi Anglie, Francie, et Hibernie regis quinto et Scotie quadragesimo super interrogatoria per ordinem curie ministrata in causa nuper exhibita per Rees ap Jevan Lloied contra Richardum Barker armigerum et alios.

[Examination taken 15 June 1607 upon interrogatories administered by the order of the court in a cause lately exhibited by Rees ap Jevan Lloyd against Richard Barker, esquire, and others]

John Towneley of Gray's Inn esquire sworn etc.

To the 3 interrogatory this examine saith that he was of counsel <as a counsellor at law> together with Sir Edward <Henry> Mountague knight <Recorder of London> and two others, counsellors at law with a bill lately exhibited into <his majesty's honourable> the court of Star Chamber by Rees ap Jevan Lloied against Mr Justice <Richard> Barker esquire and others for and concerning such misdemeanours as are mentioned in the said bill.

To the 4 interrogatory this examine saith that Rees ap Jevan Lloied came unto this examine, bringing with him a great roll of papers containing the substance of divers ~~of~~ <and sundry particular> misdemeanours against the said Mr Barker, (part whereof were afterwards comprised in the said bill and part omitted), ~~the~~ at which time the said Jevan Lloied told this examine that he came from his counsel and that he had a purpose to have a bill drawn according to those instructions, and to retain two other counsellors besides those with whom he had been, whereupon this examine did read over the instructions contained in the said

papers, and then told the said Jevan Lloied that it did not appear thereby <to this examine> that he was a party grieved, and that the substance of the bill to be drawn for those matters would be specially in the nature of a conspiracy, and therefore this ~~defendant~~ <examine> willed the said Jevan Lloied to retain presently Sir <Edward Henry Mountague to be of his> ~~some other~~ counsel to with whom this examine might confer for the drawing up of the said bill.

[Folio 1v]

~~And so thereupon the said Jevan Lloied retained the said Sir Edward Mountague to be of his counsel.~~

And also at the same time this examine told the said Jevan Lloied that the matters mentioned in the said instructions did concern ~~many~~ <some> of Sir Richard Bulkley's kindred and ~~friends~~ and that by reason thereof the same more concerned the said Richard Bulkley than him the said Jevan Lloied; and that this examine, having occasion to repair unto the said Sir Richard about law business which this examine had to deal in for the said Sir Richard, would then confer with the said Sir Richard about the said instructions, to know of him whether he could and would justify the matters of the said instructions to be true, and that then if this examine found the said Sir Richard to affirm those matters, that then this examine would confer with the said Sir ~~Edward~~ <Henry> Mountague touching the ~~drawing up of the~~ course of the Star Chamber for the warranting and drawing up of a bill upon those instructions or words to the same effect, whereof the said Jevan Lloied then liked well. And saith that afterwards he this examine, repairing to the said Sir Richard Bulkley about his other causes, had <another> conference with him about the said instructions, who then affirmed to this examine the same to be true in the material points thereof.

[*Margin*] <Sir R[ichard] B[ulkeley] affirmed the instructions in some of the material points to be true>.

And afterwards this examine repaired to the said Sir Edward <Henry> Mountague (he being before retained by the said Jevan Lloied to be of his counsel) and did confer with the said Sir Edward <Henry> about the same instructions, who then affirmed that if the same were [*Folio* 2] true, that then the same matters were examinable in the Star Chamber; and thereto this examine replied that if it pleased him the said Sir Edward <Henry> that he might at his next meeting with the said Sir Richard Bulkeley at the Parliament House confer with him <the said Sir Richard Bulkeley> touching the truth of those instructions and so received from him such satisfaction as this examine had done, wherewith the said Sir Edward <Henry> Mountague then seemed fully satisfied. After which time the said bill was drawn up in paper <by this examine and his man> and then perused by this examine, and afterwards the said Jevan Lloied carried the said bill unto the said Sir Edward <Henry>, which the said Sir Edward <Henry> having perused (as the said Lloied told this examine), requested this examine to come to him the said Sir Edward <Henry>, who repairing unto him the said Sir Edward <Henry> did in this examine's presence read over most of the said bill, and then also the said Sir Edward <Henry> willed that the said bill might be left with him further to peruse, which was accordingly left with him by the space of <about> three weeks together. And afterwards the said Sir Edward <Henry> willed the said bill to be engrossed, which being engrossed <and brought by the said Lloyd unto> Sir <Henry> Edward, he misliked with the length thereof; and then <the said Sir <Henry> Edward> with his own hand did put out, and give order for the putting out of <about> a third part of the said bill, and afterwards the said bill was newly engrossed and brought to the said Sir Edward <Henry> Mountague, who then <again> after he <had read over the same and then> made some question of the

truth of the matters therein contained did set his hand to the said bill. And more cannot say to this interrogatory.

[*Folio 2v*]

To the 5 he cannot say any more than he hath before declared to the precedent interrogatory.

To the 6 interrogatory this examine saith that he received of the said Rees ap Jevan Lloied for and concerning the said bill the sum of four pounds and ten shillings and no more, to this examine's best remembrance, neither did this examine receive any other sum of money of any other person touching that business.

To the 7 <13> this examine saith that touching the matters mentioned in this interrogatory, he received the same as he did the rest by the instructions of the said Rees ap Jevan Lloied and of no other person. And touching the last part of this interrogatory this examine taketh himself not bound by the order of this honourable court to make any answer thereunto.

To the 15 he saith as he hath before said to the precedent interrogatory. And more cannot say thereunto.

To the 16 he saith as he hath before said to the precedent interrogatory. And further this examine taketh the contents of this interrogatory not any way to concern the matters of the order made in this honourable court whereby this examine is now examined.

J Townley

[*Folio 3*]

xvj Junii 1607

Rees ap Jevan Lloied, now prisoner in the Fleet, sworn etc.

To the 1 interrogatory this examine saith that he did not report to any person or persons <to his remembrance> since the sixth day of October last that Richard Barker, esquire, one of his majesty's justices of his highness's great sessions of the county of Anglesey in North Wales should be no more justice there. But he this examine did since that time <say that he> wished that the said Mr Barker might ~~be~~ no more come to be justice there, and that if he did, that this examine might not receive his trial under him; but <to> whom this examine so said he doth not now certainly remember, but as he thinketh, it was to George Llewelen, and <saith> that the occasion of this examine's so saying was ~~upon~~ ~~de~~ upon this examine's then being newly come from London and it being then demanded of this examine whether the said Mr Barker and <also> Mr Justice Leighton were put out of their places of being justices of assizes within that county.

To the 2 interrogatory this examine saith that he doth verily believe in his conscience that John ap Jevan Lloied, this examine's brother, was at the last sessions holden for the county of Anglesey wrongfully indicted, condemned and executed for the supposed murdering of his wife, for this examine did often charge the said <John ap> Jevan Lloied with that matter ~~and~~ to the end that he should confess the same <if it were true>, and he still denied it to the death. And further he saith that he this examine was unjustly and wrongfully indicted for that ~~effect~~ fact, for he was not in any sort privy or consenting to the doing thereof. And further this examine saith that as he taketh it, William ap Rees ap William that was executed with this examine's brother, and he this examine, were the sons of cousin germans removed.

[Folio 3v]

To the 3 interrogatory this examine saith that he did prefer a bill into the Star Chamber against Mr Justice <Richard> Barker ~~and others~~ justice of assize of the county of Anglesey

and others for and touching wrong and injustice as this examine conceived it done unto the said William ap Rees ap William and others and for other ~~other~~ misdemeanours. And saith that the reason why he did not by the said bill preferred in this honourable court complain of the wrongs done to this examine was for that he had <before> brought his action in the court of Common Pleas at Westminster of conspiracy touching those matters. And touching the wrongs done to this examine's brother ~~because he was dead~~ this examine thought it not good to bring it in question as well because he was dead as also because this examine's brother did not <in his life time> wish this examine so to do.

To the 4 interrogatory this examine saith that he this examine was imprisoned together in one prison with the said William ap Rees ap William before the ~~de~~ said Rees William was executed by the space of a quarter of a year or thereabouts. And after the said <William ap> Rees was condemned for the said fact he did in the prison at Beaumaris (*Bew Marris*) call this examine aside, desiring this examine to hear his confession <privately what he would say>, at which time he told this examine that he was as innocent of the fact whereof he was condemned as the child new born, and then the said William ap Rees delivered to this examine certain writings, saying 'here is a direction for you against Mr Barker and others of their dealings, which I pray you make known to the state after I am dead, as you are my kinsman', at which time this examine vowed to the said William ap Rees that this examine would do the same. And thereupon by the [*folio 4*] instructions of those writings and by such collections against the said Mr Barker and others as this examine had collected himself, he this examine caused the said bill to be drawn and put into this honourable court, without the procurement, advice <or> entreaty of Sir Richard Bulkley, knight, Daniel Bulkley, Tristram Bulkley, Lancelot Bulkley or William Bulkley or either of them or of any other person or persons. But before the exhibiting of the said bill <and after the drawing thereof> this examine told the said Sir Richard Bulkley that this examine meant to exhibit

a bill against the said Mr Barker and others into this honourable court <and that this examine had caused the same to be drawn>, and that this examine meant to use him the said Sir Richard Bulkley to testify his knowledge touching those matters <wherewith he this examine then acquainted the said Sir> ~~To the 5 interrogatory this examine saith that~~ Richard Bulkley, at which time the said Sir Richard willed this examine to bring him this examine's said bill to see, saying that he would first see it, if this examine meant to use him as a witness; and so afterwards this examine brought the said bill unto the said Sir Richard Bulkley, who having read the same used these words to this examine, that is to say 'here is a long bill, if thou dost bring me as a witness I will speak the truth'.

To the 5 interrogatory this examine saith that neither the said Sir Richard Bulkley nor Daniel Bulkley, Tristram Bulkley, Lancelot Bulkley, William Bulkley or either of them did write, send or speak to this <examine> ~~defendant~~ to exhibit the said bill, neither did they or any of them give or send any direction or instruction for the framing of the said bill, neither did Harry Lloied, esquire, nor William Kenricke nor any other person or persons otherwise than this examine hath before declared give <any> direction to this examine for the drawing of the said bill, but he this examine himself did only <give> direction to ~~the said~~ <Mr> Towneley for the drawing thereof.

[*Folio 4v*]

To the 6 interrogatory this examine saith that he did not receive nor had any sum or sums of money of Sir Richard Bulkley and William Bulkley or either of them, nor of William ap Rees Humfry nor of any other person or persons by their or any of their direction or appointment, directly or indirectly, sithence the sixth day of October last for or towards the drawing of the said bill or prosecution of that suit. But in March last past this examine borrowed of the said Sir Richard Bulkley the sum of £20 and then gave him a bill of this examine's hand for

repayment thereof. And also since this examine's <now> imprisonment in the Fleet he this examine <wanting money to bear his necessary charges> sent unto William ap Rees Humfrie to ~~borrow~~ lend this examine some money at several times, and so thereupon the said William ap Rees Humfry lent this examine at divers times the sum of three pounds and ten shillings, which money was brought this examine by some of the Warden of the Fleet's servants.

To the 7 interrogatory he saith that he did a little before he was imprisoned resort to the house of the said Sir Richard Bulkley ~~house~~ in Channell Row and there spake with the said Sir Richard about a tenement of ~~this examine's, which~~ the said Sir Richard which a brother of this examine's would have taken of him in the country. And also this examine, bring acquainted with the said Sir Richard's men, did sometimes keep them company and dieted where they dieted, and also sometimes meeting the said William Bulkley by chance, he this examine kept him company. But this examine had not any conference with the said William Bulkley touching the proceedings had upon the said ~~suit~~ bill.

[Folio 5]

To the 8 interrogatory this examine saith that he had above twenty pounds in money, gold and silver <of this examine's own goods and apparel worth about ten pounds> at the time that this examine was acquitted of the said murder, and also this examine then had a horse and two colts which were before pawned to this examine <for ten pounds> by John ap Jevan Lloied this examine's brother and by him forfeited to this examine in not paying the said £10 <which horse and colts were at that time remaining upon that¹ ~~the said tenement of Vershers~~ tenement which this examine's brother held>. And further this examine saith that ~~since he was so acquainted he~~ <hath> borrowed at several times of this examine's father the

¹ Altered from *the*; the deleted words uncertain.

~~sum of v three pounds and seven shillings~~ he had also when he was so acquainted two or three sheep and <also> some household stuff which was left this examine by his grandmother; and also at the same time this examine had an interest in a tenement called Tythin Llaythdy lying in the parish of Amlwch (*Amblowgh*) in the county of Anglesey and also <some> interest in another tenement called Rhyddgyr lying in the said parish of Amlwch. And further this examine saith that since he was so acquainted he hath had and borrowed of this examine's father the sum of three pounds and seven shillings. And saith that sithence the said sixth day of October he hath laid out several sums of money, as well in suits of law as for this examine's own expenses, but how much this examine hath so disbursed or laid out he cannot depose. But this examine hath since the said 6 day of October preferred his bill into this honourable court against the said Mr Barker and other and also <had and> hath ~~<ind>~~ a suit <for conspiracy> depending in the court of Common Pleas at Westminster against Howell Lewis, William Lewis and Hugh Lewis, and an action in the court of Exchequer against John Lewis, and Rees ap Hugh, and also an action in the King's Bench against the said Howell Lewis; and also the examine hath <since the time aforesaid> prosecuted on the behalf of his majesty another suit in the court of [*folio 5v*] Exchequer <at Westminster> against the said Howell Lewis upon the forfeiture of a recognizance. And this examine saith that no person or persons paid any part of the said charges besides this examine himself. And that he this examine <was moved to> ~~did~~ bring those actions to right himself for such griefs and wrongs as he had sustained; and <this examine> coming to London there ~~this examine~~ made known his said griefs and wrongs unto counsel <and so> he this examine was by them advised to prosecute the said actions according to law.

To the 9 interrogatory this examine saith that he doth not remember whether he had any talk with the said Sir Richard Bulkley touching the said bill in the Star Chamber the last term or not. But if this examine had then any talk ~~w~~ or conference with the said Sir Richard, it was

about ~~in~~ <about the> shewing him the copy of the said bill at such time as this examine told the said Sir Richard that this examine would use him as a witness concerning ~~of~~ some of the matters of the said bill. And further this examine saith that he had not to his knowledge and now remembrance any talk at all with the said William Bulkley the last term touching the said bill, neither did this examine upon the Thursday after he was attached by the Warden of the Fleet's man secretly confer with the said Sir Richard Bulkley in his chamber about the said bill as is supposed. Neither did this examine to his remembrance speak with the said Sir Richard Bulkley at all that day.

To the 10 interrogatory this examine saith that he doth not know who passed his word to the Warden of the Fleet's man for this examine's appearance in the Star Chamber, nor [*folio 6*] whether any person or not passed his word for this examine in that behalf, for he saith he did not request any person so to do. And more he cannot say to this interrogatory, saving that Mr Towneley is of counsel with the said Sir Richard Bulkley in some of his law causes.

To the 11 interrogatory this examine saith that he did not carry any letter or token since the said vjth day of October to any person or persons within the county of Anglesey from the said Sir Richard Bulkley for any money to be paid or delivered this defendant <examine>, neither doth this examine know that the said Sir Richard Bulkley and William Bulkley or either of them did pay or promise to pay to the said Mr Towneley any sum or sums of money, reward or recompense for his pains and care taken or to be taken in the said suit in the Star Chamber.

To the 12 interrogatory this examine saith that he doth not <certainly> remember whether upon a petition preferred by this examine to the right honourable the Lord Chancellor <of England> for the continuance of the said suit upon the said bill, that this examine did offer sureties to pay the defendant's charges if the cause were decreed against this defendant or not,

but if there ~~be~~ was any mention thereof <upon the said petition> and if it had pleased the said Lord Chancellor to have granted the continuance of the said suit, then this examine purposed to have looked out sureties <in London, having divers kinsmen here at that time>, but this examine did not beforehand intend who should be this examine's sureties, neither did any person promise to be this examine's surety, not to procure this examine surety in that behalf.

[*Folio 6v*]

To the 13 he is not appointed to be examined.

To the 14 interrogatory this examine saith that he hath not received any maintenance or money from Sir Richard Bulkley nor from William Bulkley nor from any of the said Sir Richard Bulkley's servants since this examine's imprisonment in the Fleet, otherwise than the said sum of three pounds and ten shillings which this examine received from the said William ap Rees Humfry, which £3 was brought this examine by <Anthony Leadman> the Warden of the Fleet's man, and the other 10s was delivered unto Mr Jones this examine's attorney in this court. And further this examine saith that he had not <to his remembrance> written any letters <to any person> since his said imprisonment in the Fleet.

To the 15 and 16 interrogatories he is not appointed to be examined.

Rees ap Jevan Lloid